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File No.: EXP202204481

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On March 31, 2022, a complaint was filed with registration number REGAGE22e00010663358 with the Spanish Agency for Data Protection against XFERA MÓVILES, S.A. with NIF A82528548 (hereinafter, XFERA). The reasons for the complaint are as follows:

The complainant submits a complaint for receiving a commercial call on their mobile line

***TELEFONO.1 on March 31, 2022, from the line ***TELEFONO.2, despite being registered on the Robinson List since July 16, 2018.

Along with the notification, the following is provided:

- Proof of registration on the Robinson List.
- Telephone bill and mobile phone contract.
- Screenshot of incoming calls from March 31, 2022, showing the call from line ***TELEFONO.2 at 16:23 hours.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to XFERA for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

On April 21, 2022, a response was received by this Agency indicating that they have verified in their system that the complainant's number has not been commercially impacted by any action authorized by XFERA and states that their collaborators must provide them with a monthly updated list of outgoing numbers they will use, with the use of uncommunicated numbers not being permitted, and they have verified that the calling line is not associated with any of their collaborators.

Additionally, they conducted an internal investigation and found that the complainant's number had been used by two distributors in a face-to-face modality, but the number used does not correspond with the calling line ***TELEFONO.2. Although the number does not correspond with that presented in this complaint, they have been penalized by terminating the contractual relationship with them.

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THIRD: On June 30, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

With the information provided by the defendant regarding the distributors that have been penalized, requests were made to the State Agency for Tax Administration (hereinafter, AEAT) requesting the NIF of both and providing full name and postal address. On August 23, 2022, responses from the AEAT providing the required data arrived at this Agency.

On that same date, August 23, 2022, a request for information was made to both distributors ARM FAIM and TELECO LVJ, asking them for information regarding the existence of a current contractual relationship between each of them and the defendant, as well as information about contracts maintained in the past and a copy of the last resolved contract between these entities.

On August 24, 2022, at 09:51:20 (registration number in the AEPD REGAGE22e00036449619), distributor ARM FAIM sent to this Agency its response to the information request, which includes only two documents:

- 1- Non-compliance letter. April 27, 2022
- 2- Contract with the defendant dated February 7, 2022

On August 24, 2022, at 09:58:25 (registration number in the AEPD REGAGE22e00036443866), distributor TELECO LVJ sent to this Agency its response to the information request, which includes only two documents:

- 1- Non-compliance letter. April 27, 2022
- 2- Contract with the defendant dated September 21, 2021

It is noteworthy that both requests received responses at the General Register of the Data Protection Agency with an interval of 7 minutes between them, with the same text in the subject and providing the same type of documentation: the non-compliance letter that had already been provided to the Agency by the defendant in its response to the transfer and the last contracts signed with it.

Consulting the operator of the calling line ***TELEFONO.2 regarding the identifying and contact details of the holder of that telephone line on the date of the events, March 31, 2022, a response was received by this Agency on September 9 of...

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September 2022 and entry registration number in the AEPD REGAGE22e00039369591, indicating:

- ACTIVATION DATE: 2022-02-23
- NAME: A.A.A.
- DOC TYPE: DNI
- DOC NUMBER: ***NIF.1
- NATIONALITY: SPAIN
- BRAND: ***BRAND.1
- CONTRACT TYPE: PREPAID

The operator indicates that ***BRAND.1 operates under the prepaid modality and, therefore, lacks data related to the contract, invoices, copies of identification documents, address, or bank accounts of the users.

This DNI number is verified in the AEPD's SIGRID information system, and the system returns the information:

Response from the consultation service: DNI Holder not issued/assigned

In the absence of a response regarding the existence of an active contractual relationship between the distributors and the claimed party, on October 27, 2022, a second information request is made to both, again requesting information about the existence of an active contractual relationship between each of them and the claimed party, information about contracts maintained in the past, dates of signing and resolution of the contracts, and the reason for their resolution.

On November 2, 2022, at 09:10:09 (entry registration number in the AEPD REGAGE22e00049112595), the distributor TELECO LVJ sends this Agency its response to the information request, which again includes only two documents:

- 1- Non-compliance letter. April 27, 2022
- 2- Contract with the claimed party dated September 21, 2021

On November 2, 2022, at 09:14:40 (entry registration number in the AEPD REGAGE22e00049113242), the distributor ARM FAIM sends this Agency its response to the information request, which again includes only two documents:

- 1- Non-compliance letter. April 27, 2022
- 2- Contract with the claimed party dated February 7, 2022

On January 25, 2023 (entry registration number in the AEPD REGAGE23e00005086298), the telephone operator of the claiming party confirms the receipt of a call to the phone number ***TELEPHONE.1 from the number ***TELEPHONE.2 on March 31, 2022, at 16:13, with a duration of 15 seconds.

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LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories

Article 48 of Law 9/2014, of May 9, General Telecommunications Law (in force at the time the infringement was committed), under the heading "Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories," provides in its subsection 1.b) the following:

"1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of electronic communications services shall have the following rights:

(...)

b) To oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous letter and to be informed of this right."

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III

Conclusion

Through the actions carried out by this Agency, evidence has been obtained of the phone call made from ***TELEFONO.2 to the claimant's number. It has been verified that the ownership of this line corresponds to an individual with a prepaid contract, so the operator of this line lacks data related to the contract, invoices, copies of identification documents of residence or bank account.

The responding party acknowledges that the number of the claimant ***TELEFONO.1 has been used by two of its distributors in a face-to-face modality, but the number used does not correspond to the number ***TELEFONO.2 reported by the claimant in this file. It has been verified that the responding

party penalized the two distributors who used the claimant's data, terminating the contractual relationship with them on April 27, 2022.

Therefore, based on the information provided in the previous paragraphs, it has not been possible to identify the responsible party for the commercial call since the phone listed as the caller belongs to a prepaid mobile line and no information is available about it.

Thus, in accordance with the statement made by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO PROCEED TO FILE the present actions.

SECOND: TO NOTIFY this resolution to ARM FAIM AUTO, S.L., A.A.A., TELECO LVJ ETC, S.L., and XFERA MÓVILES, S.A. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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